

ORIGINAL

S E R V E D

August 9, 2011

FEDERAL MARITIME COMMISSION

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WASHINGTON, D.C.

DOCKET NO. 1923(F)

THE EAGLES WINGS FOUNDATION

v.

CHATELAIN CARGO SERVICES

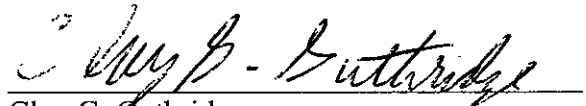
NOTICE OF ASSIGNMENT

On June 1, 2011, the Secretary received an informal complaint alleging violations of the Shipping Act of 1984 filed by complainant The Eagles Wings Foundation (Eagles Wings). The complaint alleges that respondent Chatelain Cargo Services (Chatelain) violated the Shipping Act when it failed to deliver a forty-foot container to Eagles Wings's representative in Haiti. Eagles Wings requested informal adjudication of the complaint pursuant to 46 C.F.R. Part 502, Subpart S; therefore, on June 10, 2011, the Assistant Secretary forwarded the complaint to the Commission's Alternative Dispute Resolution Specialist. Memorandum dated June 10, 2011, from Rachel F. Dickon to Alternative Dispute Resolution Specialist. The Alternative Dispute Resolution Specialist appointed a settlement officer who served a Notice of Filing of Complaint and Assignment. *The Eagles Wings Foundation v. Chatelain Cargo Services*, FMC No. 1923(I) (June 23, 2011) (Notice of Filing of Complaint and Assignment).

On July 15, 2011, Chatelain filed a verified response stating that it did not consent to informal adjudication pursuant to Subpart S "or any other proceeding before the FMC since the action . . . is nothing more than a breach of contract cause of action over which the [Commission] lacks jurisdiction . . ." (Respondent's Verified Response in Opposition to Small Claim Informal Adjudication and Incorporated Motion to Dismiss Complaint based upon the Federal Maritime Commission's Lack of Jurisdiction at 2.) Since Chatelain objected to adjudication pursuant to Subpart S, on August 5, 2011, the Secretary referred this matter to the Office of Administrative Law Judges. Memorandum dated August 5, 2011, from the Secretary to Administrative Law Judge. *See* 46 C.F.R. § 502.304(f) ("If the respondent refuses to consent to the claim being informally

adjudicated pursuant to this subpart, the claim will be considered a complaint under § 502.311 and will be adjudicated under Subpart T of this part.”).

The undersigned judge will conduct such hearings and conferences as may be necessary to resolve the issues and to issue an Initial Decision or dispositive ruling.


Clay G. Guthridge
Chief Administrative Law Judge